

STATE OF NEW YORK

9930--A

IN SENATE

April 16, 2026

Introduced by Sen. SUTTON -- read twice and ordered printed, and when printed to be committed to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to enacting the "Sacred Burial Law" facilitating the handling of certain unclaimed bodies

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Sacred Burial Law".

3 § 2. The public health law is amended by adding a new section 4211-a
4 to read as follows:

5 § 4211-a. Cadavers; unclaimed; delivery to religious organizations. 1.
6 Notwithstanding the provisions of section forty-two hundred eleven of
7 this title, and prior to the disposition of a body pursuant to such
8 section, if the body of a deceased person is not claimed as provided in
9 section forty-two hundred two of this article and such person is known
10 to have been of Jewish descent or of Muslim descent, the director or
11 person in charge of any hospital, institution, morgue or other place for
12 bodies of deceased persons not interred or otherwise finally disposed
13 of, and every funeral director, undertaker or other person having in
14 their lawful possession, any body of a deceased person for keeping
15 or burial, shall contact: (a) for persons of Jewish descent: (i)
16 Misaskim, 5805 16th Ave, Brooklyn, NY 11204, (718) 854-4548; (ii) Chesed
17 Shel Emes, 1224 52nd St, Brooklyn, NY 11219, (855) 273-2121; and/or
18 (iii) Hebrew Free Burial Association, Inc. 330 7th Avenue, 10th Floor
19 New York, NY 10001, (212) 239-1664; or (b) for persons of Muslim
20 descent: Janazah Community Funeral Services, 5306 3rd Ave, Brooklyn, NY
21 11220, (646) 427-3885, or any successor organizations, and inquire if
22 the organization is willing to pay for the burial expense of the
23 deceased person, and, if the organization is willing to do so, deliver
24 the body of the deceased person in their possession, charge, custody or
25 control not placed therein by any person, agency or organization for

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 keeping, burial or other lawful disposition to the agreeing organiza-
2 tion.

3 2. No unclaimed human remains shall be buried, cremated, or otherwise
4 finally disposed of unless such remains have first been entered into the
5 National Missing and Unidentified Persons System, or any successor data-
6 base, in accordance with applicable procedures.

7 3. The provisions of this section shall not supersede any prior writ-
8 ten directives of the deceased person regarding anatomical gifts pursu-
9 ant to article forty-three of this chapter.

10 § 3. This act shall take effect on the ninetieth day after it shall
11 have become a law.